

1.

| CASE #      | CASE NAME                                     | HEARING NAME                                                                                                                          |
|-------------|-----------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2304959 | CHRISTOPHER NEIL ENTERPRISES, INC. VS SUSSMAN | MOTION TO CONTINUE ON CROSS-COMPLAINT OF CHRISTOPHER NEIL ENTERPRISES MOTION TO CONTINUE TRIAL AND ALL RELATED DATES BY GAUSTON CORP. |

**Tentative Ruling:** Hearing taken off calendar by court. Court approved stipulation and order to continue trial on March 10, 2026 rendering this motion moot, which was filed February 20, 2026.

2.

| CASE #      | CASE NAME                 | HEARING NAME                                                                                                                              |
|-------------|---------------------------|-------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2500795 | MANSOORI VS WALMART, INC. | MOTION TO COMPEL DEFENDANT VINTAGE ASSOCIATES INC'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS SET ONE BY MANSORA MANSOORI |

**Tentative Ruling:** Hearing continued to July 28, 2026 at 8:30 AM in Department PS2.

This is a personal injury action. Plaintiff Mansora Mansoori was picking up an order from Walmart, Inc. located at 34500 Monterey Avenue, Palm Desert, California on February 4, 2023. While walking through the parking lot, Plaintiff unexpectedly tripped on a protruding tree stump and fell. Plaintiff sustained injuries.

On January 30, 2025, Plaintiff filed her Complaint against Walmart and developer/property management company, Rothbart Development Corporation. On August 14, 2025, Plaintiff filed a DOE Amendment naming Vintage Associates, Inc. as a co-defendant.

On September 30, 2025, Plaintiff served an initial set of written discovery upon Defendant Vintage Associates, Inc. including Demand for Production of Documents, Form Interrogatories, Special Interrogatories, and Requests for Admission. Defendant provided objection-only responses on January 14, 2026.

Plaintiff now brings the instant motion to compel Defendant Vintage Associates, Inc. to provide further responses to Demand for Production of Documents is set to be heard on June 9, 2026. Plaintiff also seeks monetary sanctions against Defendant for having to bring the instant motion.

In Opposition, Defendant asserts it has provided supplemental responses to all requests at issue making the instant motions moot. Defendant also argues monetary sanctions are not appropriate and the amount requested is excessive and unreasonable.

In Reply, Plaintiff states Defendant provided unverified further responses on the same day Plaintiff's Reply was due (June 1, 2026). Plaintiff argues this means no supplemental responses have been provided yet so the motions are not moot.

#### Motion to Compel Further Response(s)

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motions are accompanied by the declaration of Attorney Robert L. Booker II, who sent one email to opposing counsel after receiving the objection-only responses. (Booker Decl. ¶¶8-9.) It does not appear that

the parties meaningfully met and conferred about these issues. However, since Defendant has provided supplemental responses, the lack of meet and confer prior to bringing the motions is inconsequential.

Where a response to an inspection demand has been made, but the demanding party is not satisfied with the response, the remedy is a motion to compel further responses. (CCP §2031.310.) This motion must be served within 45 days after service of a verified response (extended if served by mail, overnight delivery or fax or electronically; see CCP §§ 1010.6(a)(3), 1013). Otherwise, the demanding party waives the right to compel any further response to the CCP § 2031.010 demand. (CCP §§ 2031.310(c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.) The 45-day time limit is mandatory and “jurisdictional,” meaning the court has no authority to grant a late motion. (*Sexton v. Sup. Ct. (Mullikin Med. Ctr.)* (1997) 58 Cal.App.4th 1403, 1410.) The 45-day deadline runs from the date the verified response is served, not from the date originally set for production or inspection. (CCP §2031.310(c); *Standon Co., Inc. v. Sup. Ct. (Kim)* (1990) 225 Cal.App.3d 898, 902.) The deadline may be extended by written stipulation of the parties. (CCP §2031.310(c).)

Defendant asserts it has provided supplemental responses to the demands at issue. In Reply, Plaintiff says Defendant only provided unverified responses which are “tantamount to no responses at all.” (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Plaintiff is correct that unverified responses do not constitute supplemental responses. However, clearly Defendant is willing to provide supplemental responses. One additional opportunity will be granted. Hearing will be continued with the parties ordered to meet and confer about Defendant’s supplemental responses and a notice of withdrawing hearing if verified responses are provided.

### Sanctions

As to the issue of sanctions, the Court retains discretion to impose sanctions for the reasonable expenses incurred in bringing a motion to compel, even if the requested discovery is ultimately provided after the motion is filed. (CRC Rule 3.1348(a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–409.) Defendant appears to have only provided supplemental responses because Plaintiff filed the instant motions. However, since Plaintiff did not make a good faith meet and confer effort prior to bringing the motions, sanctions are not warranted.

### 3.

| CASE #      | CASE NAME                                         | HEARING NAME                                                                                |
|-------------|---------------------------------------------------|---------------------------------------------------------------------------------------------|
| CVPS2503169 | DOE VS PALM SPRINGS<br>UNIFIED SCHOOL<br>DISTRICT | DEMURRER ON 1ST AMENDED<br>COMPLAINT OF JOHN DOE BY PALM<br>SPRINGS UNIFIED SCHOOL DISTRICT |

**Tentative Ruling:** Hearing continued to July 28, 2026 at 8:30 a.m. in Department PS2.

Plaintiff John Doe, a five-year-old minor, by his mother and natural guardian Angelica Melgar, sued the Palm Springs Unified School District (“District”) and Agua Caliente Elementary for alleged sexual assault by another student. On April 28, 2025, Plaintiff filed his Complaint, alleging the following four causes of action against the District and Agua Caliente Elementary: 1st cause of action (negligent hiring, supervision, and retention); 2nd cause of action (negligent failure to educate, train, or warn); 3rd cause of action (vicarious liability); and 4th cause of action (Civil Code, §§ 51, 52).